

Government Response Brief

Overview

The institutional respondent files this response brief on May 14, 2025. It agrees that the corrected administrative record is AR1–AR238, that Agency Exhibit P-7 was restored unchanged, and that PA1–PA8 remains outside the agency evidence. The respondent also does not dispute that A.R.M. tendered the petition on February 11, within thirty days of the Board’s January 13 order. The remaining question is whether the agency’s denial of CAT protection should be vacated for analytical error.

It should not. The immigration judge credited the core past account, identified the governing CAT and acquiescence standards, discussed each asserted link, weighed country and institutional evidence, and explained why the future burden was not met. AR163–AR177. The Board reviewed the same challenges and affirmed. AR211–AR217. Rodriguez-Arias requires aggregate consideration, not acceptance of every asserted connection or a numerical calculation. Read as a whole, the decisions found the proposed chain too uncertain after considering both its components and their alleged overlap.

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Record agreement

The respondent supported correction because the first court transmission did not match the agency proceeding. The hearing clerk identified P-7 as an eighteen-page declaration lodged April 12, 2024; DHS objected on neither authenticity nor timeliness grounds and did not oppose admission; and the immigration judge admitted it. AR117. The transcript and written decision repeated that ruling. AR138–AR139, AR161, AR164. The March audit then verified the stored object’s exact digest and restored it at AR33–AR50 without changing a page. AR227–AR234.

That agreement carries no concession about credibility beyond the immigration judge’s findings, the weight of any statement, or the ultimate probability of future torture. Admission determines what the agency could consider, not what a reviewing court must believe. Nor does the correction support adding the later T.R. declaration. That proffer postdated the Board order and was never before the agency. The March stipulation properly restored one omitted exhibit while expressly excluding the other material.

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Standard of review

Under 8 U.S.C. § 1252(b)(4)(B), administrative factual findings are conclusive unless any reasonable adjudicator would be compelled to conclude otherwise. Predictions about future events, the likelihood that actors will cooperate, and the probable official response are factual determinations. The Court reviews legal questions, including the governing CAT framework, without deference, but it may not reweigh the record under the label of meaningful consideration.

The agency stated the correct burden: A.R.M. had to prove that torture was more likely than not after consideration of all relevant evidence and that qualifying harm would involve official action or acquiescence. AR163, AR165. It also recognized that awareness may include willful blindness and must be followed by breach of a duty to intervene. AR165. The respondent acknowledges that a failure to aggregate or apply that definition would be legal error. The dispute is whether the decisions actually made those errors, not whether this Court would assign different weight to the evidence.

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Board decision

The Board's eight-page order should be read with the immigration judge's incorporated findings. The Board recognized the credited past encounter and P-7's admitted status, then addressed Unit Four, contractor evidence, registry access, relocation, complaint routing, formal safeguards, and the evidence-consideration challenge. AR211–AR216. It agreed that renewed official interest was possible, that registry systems could identify returnees, and that the complaint reached the regional command. It nevertheless found the links insufficiently reliable to establish likely torture or acquiescence.

A.R.M. emphasizes matters the Board did not discuss at length. But an agency appellate decision need not reproduce the hearing record or answer every evidentiary contention when it adopts a reasoned underlying decision. The immigration judge had already described the prior detention, complaint codes, country report, medical sources, institutional witness, and relocation evidence. AR166–AR176. Taken together, the decisions identify the facts accepted, the gaps the agency found material, and the reasons it considered the burden unmet.

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Aggregation principle

The respondent accepts the rule of *Rodriguez-Arias*, 915 F.3d at 974–77: an adjudicator must consider risk from all supported sources in the aggregate and may not demand that one freestanding source independently establish the CAT threshold. That rule does not require the agency to assume that uncertain links occur, add probabilities unsupported by the record, or treat a merely conceivable sequence as more likely than not.

The terminology at AR171 is not ideal in isolation, but the surrounding decision did more than create three unrelated boxes. It described Unit Four’s prior conduct and registry access, Harbor League’s alleged information role, registry notification capacity, contacts among those sources, and Varo’s institutional map. AR168–AR176. The judge then found the asserted contacts too uncertain to alter the outcome. The Board likewise addressed the claimed connections and found they did not overcome the individual evidentiary weaknesses. AR212–AR214. The respondent submits that this was an aggregate assessment of an inadequately supported chain, even if expressed source by source.

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Unit Four evidence

The respondent does not minimize the credited past event. The immigration judge found that Unit Four officers detained A.R.M., intentionally inflicted serious unlawful harm to obtain ledger information, and warned against complaint. AR167. That history is relevant to future risk and was given substantial weight. It does not, however, compel a finding about conditions at the time of removal.

The agency identified material changes and gaps. A.R.M. departed Kalyra lawfully; more than a year passed before the hearing; no authenticated document showed a current case or personal registry flag; and the expert found no continuous nationwide Unit Four surveillance. AR168, AR174, AR176. Formal custody controls and possible discipline supplied additional contrary evidence. The question is not whether Unit Four could renew its interest, which the agency accepted as a serious possibility. It is whether the record compelled a finding that this future contact, combined with the other supported events, would more likely than not culminate in regulatory torture. The agency reasonably answered no.

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Harbor League evidence

The Harbor League evidence supports concern but contains acknowledged attribution limits. The July speakers referred to ledger details, yet A.R.M. could not identify them as contractors or officials. AR125, AR166. The message metadata preserved nonpublic references but came from newly created handles that could not be attributed. AR69. Varo identified vendor and dispatch overlap with a former Unit Four employee, while cautioning that overlap did not prove a common command or conspiracy. AR154.

A.R.M. characterizes contractors as an enabling link rather than independent torturers. That theory was before the agency. The immigration judge noted information access and official contacts, while the Board considered the contractor facts in the same section as Unit Four but treated them as a separate risk. AR169, AR213. The respondent submits that the missing proof was a reliable connection between unidentified speakers, present Harbor League actors, and future Unit Four conduct—not contractor detention authority. The agency could give that uncertain link limited weight without violating the aggregate-risk rule.

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Registry evidence

The record shows that Kalyrian systems hold arrival, employment, and household information and that a regional security liaison may request it. AR75, AR79. Audit samples included unsupported queries. Yet Varo could not identify a current flag for A.R.M., determine that every arrival notification reaches Unit Four, or show that officials outside Merrow would act on an old municipal inquiry. AR79, AR85, AR159. The immigration judge also found no evidence that registry personnel had threatened A.R.M. or themselves performed detention. AR170.

The respondent agrees that an enabling step may matter even when its operator does not inflict harm. But capability is not probability. For registry identification to advance the asserted chain, an active or generic flag must identify A.R.M., a liaison must transmit the information, Unit Four must retain harmful interest, and the encounter must result in qualifying abuse. The respondent reads the decisions as weighing evidence bearing on those steps and treating too many transitions as unsupported. That factual judgment is not converted into legal error merely because the decision also rejected registry staff as an independent source of torture.

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Combined pathway response

A.R.M.'s proposed sequence is logically possible: a registry event identifies a returnee, a contractor contributes a location or procurement reference, and Unit Four uses official authority to act. Varo mapped those nodes and explained that overlapping steps should not be counted twice. AR86, AR154, AR159. On the respondent's reading, the agency did not reject the theory because several actors were involved; it rejected the theory because the evidence did not establish that the disputed links were sufficiently likely to form the asserted future chain.

Past detention provides a strong starting fact, but the later steps remain uncertain. There is no current flag, identified future messenger, open case document, or proof that a national query would reach Merrow. The country sample was limited and selected for data availability. AR155. Formal rules and possible relocation supplied contrary evidence. AR173–AR176. Aggregation requires those strengths and weaknesses to be evaluated together; it does not turn several possibilities into a probability above one half. The agency's reasoning permits review of that conclusion.

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Acquiescence rule

The parties agree on the governing regulation. Official acquiescence requires awareness of torturous activity, including actual knowledge or willful blindness, followed by breach of a legal responsibility to intervene. 8 C.F.R. § 1208.18(a)(7). Express approval by a senior official is not required. The immigration judge stated that rule verbatim before considering the complaint and protective institutions. AR165.

A.R.M. relies on the later observation that the record lacked direct proof of a senior official's advance knowledge or express approval. AR172. The respondent reads that sentence as an evidentiary finding, not a replacement legal test. The same section acknowledged institutional receipt, lack of an independent interview, the troubling pending status, and Pel's routing explanation. It then found the evidence insufficient to establish future awareness or acquiescence. The Board also considered the route and formal safeguards. AR215. Although its explanation was concise, it did not hold that only express consent could satisfy the regulation.

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Complaint evidence

Complaint OCI - 23 - 441 is significant and undisputed as a routing event. It was accepted under an independent-review code, linked through A.R.M.'s employment identifier to the procurement referral, and transferred to RC - 4, Unit Four regional command. The last audit entry, dated June 30, reads "regional response pending" and records no independent interview. AR66, AR80, AR148. The agency expressly acknowledged those facts. AR167, AR172, AR215.

What the record does not show is also material. Pel did not process this complaint and could not identify a particular reader. AR148. The file contains no complete regional response after June 30 and no evidence that a recipient anticipated a future act of torture. Institutional receipt of a past-abuse allegation is relevant to awareness, but it does not conclusively establish knowledge of future contractor or registry activity. The agency could find the missing information weakened A.R.M.'s acquiescence theory while still regarding the route and absence of outside review as troubling.

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Safeguards evidence

Kalyrian law prohibits torture and retaliation, requires registered custody, establishes a national inspector hotline and external review desk, and reports discipline against some officers. AR173. These measures do not automatically defeat acquiescence, and the respondent does not defend such a categorical rule. They are nevertheless relevant to the likely official response and must be weighed with evidence of imperfect implementation.

The immigration judge did that. The decision discussed the rerouted complaint and Varo's municipal sample before giving substantial weight to national mechanisms. AR172–AR176. A.R.M. had not used the inspector hotline after the municipal route failed, and the record did not establish that the national office would return a complaint to Unit Four. The sample comprised forty selected municipal files and was not nationally representative. AR155. A reasonable adjudicator could therefore regard the local experience as serious evidence without treating it as proof that all available Kalyrian authorities would remain deliberately blind to future abuse.

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Expert evidence

Varo offered a useful institutional map, and the immigration judge did not disregard it. The report distinguished formal structure from practice, identified a regional liaison, described complaint routing, and explained how contractor, registry, and Unit Four functions might connect. AR73–AR80, AR86–AR87. It also candidly disclosed limits: coded interviews, incomplete discipline data, a selected forty-file sample, no current personal flag, no universal Harbor League structure, and no numerical probability. AR74, AR88, AR91–AR92, AR159.

The decision summarized those strengths and limits, accepted the existence of institutional connections, and declined to infer a likely future chain from them. AR176. The Board affirmed the weight assigned to Varo and the other witnesses. AR216. Meaningful consideration does not require adopting an expert’s framework or repeating each source control. Because the agency identified what it accepted and why the remaining uncertainties mattered, its treatment of the report was within the factfinder’s role.

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Meaningful consideration

Rodriguez-Arias requires the agency to engage substantial CAT evidence, but it does not impose an item-by-item opinion-writing rule. The decisions here addressed the central materials: the credited detention, medical corroboration, complaint route, Pel's testimony, Varo's map and sample, Harbor League attribution limits, registry capacity, formal protections, and relocation. AR166–AR176, AR211–AR216. They stated which facts were accepted and which evidentiary gaps prevented a finding above the regulatory threshold.

A.R.M. identifies genuine tensions in the analysis, especially between the formal external-review rule and the route actually used. Those tensions do not establish that the evidence was ignored. The immigration judge called the pending status and absence of interviews troubling, while assigning limited weight because no decisionmaker or later response was identified. AR172. The Board then found no clear error and declined remand. AR215–AR216. The respondent submits that this path is discernible even if the Court might have preferred a more detailed explanation.

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Record correction does not decide merits

P-7's restored presence assures review on the record the agency actually possessed. It does not alter the agency's treatment of the declaration. The immigration judge found A.R.M. credible concerning personal experiences and credited the detention and complaint chronology. AR166–AR167. The judge also identified limits in the inferences drawn from unidentified speakers and a possible registry flag, together with contrary evidence about elapsed time. AR166, AR168. Those weight determinations remain reviewable under the statutory standard; they were not displaced by the March audit.

Nor did the omission cause the Board to overlook P-7. The Board order expressly states that the declaration was admitted as agency evidence and accepts a serious past encounter. AR211. The correction therefore resolves composition without demonstrating prejudice in the agency's merits analysis or compelling a different result. The respondent's agreement to restore the exact object should not be construed as agreement with every statement, every inference counsel draws from it, or the requested vacatur.

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Proffer exclusion

The Court correctly declined to add PA1–PA8 to the administrative record. The T.R. declaration describes events alleged to have occurred after the Board’s January 13 order and was signed February 20. It was not part of the evidence on which the removal order was based. Section 1252(b)(4)(A) confines review to that agency record, and Rule 16(b) corrects omissions rather than admitting later proof into a closed merits proceeding.

The corrected certification confirms that the proffer supplied no byte to AR1–AR238. AR235, AR237–AR238. That boundary protects both sides: A.R.M. receives the complete record the agency considered, including P-7, while the respondent is not required to litigate new factual allegations for the first time in a reviewing court. The respondent has not used PA1–PA8 to challenge credibility, and A.R.M. may not use it to establish future risk or official awareness in this petition. Any later-evidence procedure remains outside this appeal.

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Timeliness

The respondent does not assert that this petition was filed outside the thirty-day period. The Board served its final order on January 13, 2025. A.R.M. tendered a petition identifying the parties, agency, challenged order, and requested review on February 11, day twenty-nine. The clerk's deficiency notice concerned the absent copy of the Board order, not the petition's receipt date or identity. Counsel supplied that copy on February 12.

The cure did not substitute a new challenged order or a different petitioner, and nothing in the record indicates that the clerk rejected the original tender. The respondent therefore treats February 11 as the filing date for 8 U.S.C. § 1252(b)(1). The Court need not resolve any filing question beyond that undisputed chronology, which bears no further relation to the CAT merits presented here.

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Conclusion and certificate

The Court should recognize the corrected AR1–AR238 record, maintain the exclusion of PA1–PA8, and treat the February 11 petition as timely. On the merits, it should deny the petition because the agency stated the governing standards, considered the asserted connections and contrary evidence, and reasonably found that A.R.M. had not proved likely future torture or official acquiescence. If the Court concludes that clarification is required, any remand should be limited to the existing certified record and should not include appellate factual findings.

Counsel certifies that this eighteen-page response relies on no factual material outside AR1–AR238 in defending the CAT disposition. PA1–PA8 is discussed only to explain the agreed record boundary. The response was transmitted through the electronic filing system on May 14, 2025 and served that day on counsel for A.R.M.